



BUILDING PRODUCTS LLC

TAMKO Corporate
PO Box 1404
JOPLIN MO 64802-1404

PURCHASE ORDER

THIS NUMBER MUST APPEAR ON INVOICE, B/L,
PACKAGES AND PACKING LIST

4500862422

AMENDMENT NO. _____

PLEASE ENTER OUR ORDER FOR GOODS LISTED BELOW AND
NOTIFY US IMMEDIATELY IF YOU ARE UNABLE TO SHIP
COMPLETE ORDER BY DATE REQUIRED

DO NOT MAKE SHIPMENT WITHOUT BUYER'S
CONSENT IF PRICES DIFFER

TO

LOPAREX
4194 PAYSPIRE CIRCLE
CHICAGO IL 60674

SHIP TO

High Street Plant
TAMKO Building Products LLC
600 North St. Louis
JOPLIN MO 64801
Phone: 417 624 6644

PLEASE REMIT INVOICE TO: P.O. BOX 1404 - JOPLIN, MO 64802

VENDOR NO. 108886		REMARKS				
TERMS % Net 30		DAY			VENDOR ORDER NO.	ORDER DATE 01/17/2025
LINE	QTY	UNIT	DESCRIPTION		DATE REQUIRED	UNIT PRICE EXTENDED PRICE
10	2,380,00 0.00	FT	38" PP NYLON CORE WHT RL		08/29/2025	0.06 139,706.00
			Our Material Number: 11001580			
			Tax Code: I0,A/P NonTaxable/Exempt Input			
					Total	139,706.00

WHEN INVOICES SUBJECT TO CASH DISCOUNT
ARE NOT MAILED ON DATE OF SHIPMENT,
DISCOUNT PERIOD WILL BEGIN ON THE DATE
INVOICE IS RECEIVED.

NONE OF THE TERMS OR CONDITIONS CONTAINED IN THIS ORDER MAY BE
ADDED TO, MODIFIED, SUSPENDED, OR OTHERWISE ALTERED EXCEPT BY A
WRITTEN INSTRUMENT SIGNED BY AN OFFICER OF BUYER AND DELIVERED TO
SELLER, AND EACH SHIPMENT RECEIVED BY BUYER FROM SELLER SHALL BE
DEEMED TO BE ONLY UPON THE TERMS AND CONDITIONS IN THIS ORDER
EXCEPT AS THEY MAY BE SO ADDED TO, MODIFIED, SUPERSEDED, OR OTHERWISE
ALTERED, NOTWITHSTANDING ANY TERMS AND CONDITIONS THAT MAY BE
CONTAINED IN ANY ACKNOWLEDGEMENT, INVOICE OR OTHER FORM OF SELLER
AND NOTWITHSTANDING BUYER'S ACT OF ACCEPTANCE OR PAYING FOR ANY
SHIPMENT OR SIMILAR ACT OF BUYER.

BY **Kelley Leonard**
PURCHASING AGENT

TERMS AND CONDITIONS

1. ACCEPTANCE

Agreement by Seller to (a) furnish the materials ordered, or its furnishing such materials in whole or in part; or (b) with respect to services ordered, or its providing services in whole or in part, or the commencement of the services (the "Work") by Seller with reference thereto, shall constitute acceptance by Seller of Buyer's purchase order subject to these terms and conditions (the "Purchase Order"). These terms and conditions are hereby incorporated into the Purchase Order as if fully included therein and shall be considered an integral part thereof. In the event that the Purchase Order does not state price or delivery, Buyer will not be bound to any prices or delivery to which it has not specifically agreed in writing. Any terms or conditions proposed by Seller shall be void and of no effect, unless specifically agreed to by Buyer. Modifications hereof or additions hereto, to be effective, must be made in writing and must be signed by Buyer. The Purchase Order and these terms and conditions, together with such modifications and with such data relating to price and delivery as are accepted in writing by Buyer, constitute the entire agreement between the parties and supersede all prior or contemporaneous understandings, agreements, negotiations and communications, whether written or oral, with respect to the subject matter of the Purchase Order. The rights of both parties hereunder shall be in addition to their rights and remedies at law or equity. Failure of Buyer to enforce any of its rights shall not constitute a waiver of such rights or of any other rights.

2. PRICES

The acceptance of the Purchase Order constitutes a warranty that the prices to be charged for articles or services ordered are not in excess of prices charged to other customers for similar quantities and delivery requirements. Unless otherwise specified, the price includes all taxes and other charges such as shipping, delivery, duties, customs, tariffs, imposts and government-imposed surcharges. Seller will take all reasonable steps to minimize all such charges.

3. DELIVERY

It is understood and agreed that time is of the essence of the Purchase Order. Unless otherwise specified, delivery will occur and title and risk of loss will transfer only upon acceptance by Buyer.

4. PACKING AND SHIPMENT

Unless otherwise specified, price is to cover net weight of material ordered and no charges will be allowed for boxing, crating, carting, or storage. Without Buyer's prior written consent, deliveries against the Purchase Order shall not be made in whole or in part prior to the date or dates shown on the Purchase Order, nor shall they exceed the quantities specified. Seller will preserve, pack, package and handle the materials so as to protect them from loss or damage and in accordance with best commercial practices in the absence of any specifications Buyer may provide. Without limiting the foregoing, Seller shall observe the requirements of any local laws and regulations relating to hazardous work, including, without limitation, with respect to its accompanying information, packing, labeling, reporting, carriage and disposal.

5. INSPECTION

The Work, articles and all parts, material and workmanship (including equipment and facilities used by Seller in producing materials or providing services) entering into the performance of the Purchase Order shall be subject to inspection, test and count by Buyer at all times and places whether during or after manufacture. If any of the Work or articles are defective in material or workmanship or otherwise not in conformity with the requirements of the Purchase Order, Buyer, in addition to its other rights, may reject the same for full credit or may rework same at Seller's expense or require prompt correction or replacement thereof at Seller's expense, including transportation charges. Buyer shall not be deemed to have accepted the materials or Work until it has had a reasonable time to inspect after receipt of materials or completion of the Work. Such a period shall be extended if, in Buyer's judgment, the complexity of the Work or materials, the quantity received, or any other circumstances makes such extension reasonable to afford Buyer an adequate opportunity to inspect. Any unpacking or handling of the materials incident to Buyer's inspection shall not indicate Buyer's acceptance. Buyer's inspection shall not relieve Seller of obligations hereunder or of any liability for latent defects. At Buyer's discretion, such inspection may include preliminary, final, and/or random inspections to ensure that the Work or material is in good order and in accordance with Buyer's instructions and specifications. The warranties in the Purchase Order constitute assurances to Buyer that all of the Work or materials shall conform to the terms of the Purchase Order and Buyer shall be deemed to have relied upon those assurances whenever it accepts the Work or materials. Buyer reserves the right to revoke acceptance whenever it discovers such non-conformities, even if the time for inspection has passed. In no event shall payment constitute acceptance of non-conforming Work or materials.

6. SUPERVISION OF THE WORK

Seller shall supervise and direct the Work, using Seller's best skill and attention, and Seller shall be solely responsible for all construction means, methods, techniques, sequences and procedures and for coordinating all portions of the Work. Seller shall at all times enforce strict discipline and good order among Seller's employees and shall not employ for the Work any unfit person or anyone not skilled in the task assigned to them. Seller shall be responsible to Buyer for the acts and omissions of Seller's employees, subcontractors and their agents and employees, and any other persons performing any of the Work under a contract, agreement or other relationship with Seller or performing other activities on behalf of Seller for Buyer or on Buyer's property. Seller shall be responsible for initiating, maintaining, and supervising all safety precautions and programs in connection with the Work, including, but without limitation, a drug and alcohol policy which provides for reasonable suspicion and post-accident alcohol and drug testing. No employee of Seller or of a subcontractor who tests positive for drugs or alcohol in violation of Seller's drug and alcohol policy shall be permitted to enter or remain on Buyer's property.

7. WARRANTY

Seller warrants that all materials, services and Work ordered, purchased or provided hereunder: (a) will be conveyed with good title; (b) will conform in all respects with the specifications, drawings, samples, models, marketing or other description furnished or specified by Buyer, and will be of good quality, merchantable and free from any defects in material and workmanship; (c) will be manufactured in accordance with Seller's specifications and shall be fit and sufficient for the purposes for (i) which it was designed, (ii) its intended purpose, (iii) which it foreseeably may be used, and (iv) the ordinary purposes for which it is manufactured; (d) will incorporate new materials and equipment in the Work and such Work will be of good quality, free from faults and defects and in conformance with the Purchase Order with any such Work not conforming to these requirements considered defective; (e) will not infringe any U.S. or foreign patent, trademark, trade dress, trade name, copyright, or other statutory, common law or contractual right; and (f) will be performed in accordance with the standards of care and diligence normally practiced by persons performing similar services and in the best workmanlike manner. Seller agrees that the foregoing warranties shall survive delivery, inspection, and acceptance of and payment, and further shall save Buyer harmless from any loss, damage or expense, whatsoever, including attorney's fees, that Buyer may incur as a result of any breach of such warranties. All guarantees or warranties of equipment or materials furnished to Seller or its subcontractors by any third-party manufacturer or supplier shall be deemed to run to the benefit of Buyer. Any such guarantees or warranties shall not be construed to modify or limit, in any way, any rights or actions that Buyer may otherwise have against Seller under any other provision of the Purchase Order, by law, statute or in equity. Seller shall deliver to Buyer the originals of all guarantees and warranties on equipment and materials furnished by all third-party manufacturers and suppliers to Seller and its subcontractors, with duly executed instruments properly assigning the guarantees and warranties to Buyer.

8. DEFECTIVE WORK

Seller shall promptly correct any Work rejected by Buyer as defective or as failing to conform to the Purchase Order whether observed before or after completion and whether or not fabricated, installed or completed, and shall correct any Work found to be defective or nonconforming within a period of two (2) years from the date of completion of the Purchase Order or within such longer period of time as may be prescribed by law or by the terms of any applicable special warranty required by the Purchase Order. If Seller fails to correct defective Work or fails to carry out the Work in accordance with the Purchase Order, Buyer, by a written notice, may order Seller to stop the Work, or any portion thereof until the cause for such stop order has been eliminated; however, this right of Buyer to stop the Work shall not give rise to any duty on the part of Buyer to exercise this right for the benefit of Seller or any other person or entity.

9. OVERSHIPMENTS AND REJECTED MATERIAL

Buyer will pay only for maximum quantities ordered. Overshipments will be held at Seller's risk and expense for a reasonable time awaiting shipping instructions. Return shipping charges for excess quantities will be at Seller's expense. Buyer may return or hold rejected material at Seller's risk and expense, and may charge Seller the cost of shipping, unpacking, examining, repacking, warehousing, insurance charges, reshipping, duties, fees and other related expenses. If Buyer has not already offset such charges against amounts due Seller, Seller shall pay to Buyer such charges within ten (10) days of Seller's receipt of the charge from Buyer. Buyer may, in its sole discretion, destroy or sell at a public or private sale any rejected materials for which Buyer does not receive return shipping instructions within a reasonable time, and apply the proceeds, if any, first toward any storage charges.

10. PAYMENT

(a) All payments are made conditional upon acceptance by Buyer of the articles, materials or Work called for under the Purchase Order.
(b) No invoice will be passed for payment unless it bears the Purchase Order Number and contains the following certification: "The Supplier herein represents that the goods and/or services covered hereby were produced in compliance with the requirements of the Fair Labor Standards Act of 1938 as amended."
(c) Invoices for tools will not be honored until production pieces are approved by Buyer.
(d) Payments may be withheld on account of: (i) defective Work not remedied; (ii) claims filed against Seller arising out of the Work; (iii) failure of Seller to make payments properly to subcontractors or for labor, materials, or equipment; (iv) damage to Buyer or another contractor; (v) failure to carry out the Work in accordance with the Purchase Order; or (vi) failure to timely provide lien waivers.
(e) If Buyer fails to make payment under the Purchase Order after payment is properly payable, Seller may, upon 10 additional days written notice to Buyer, terminate the Purchase Order and recover from Buyer payment for all Work performed; provided that Buyer will not be obligated to pay any more than the payment that would have become due had Seller completed and Buyer accepted the Work.
(f) Buyer may set off against any amounts payable to Seller all present and future indebtedness of Seller to Buyer arising from any transaction with Seller.

11. CHANGES

Buyer may at any time, by a written notice, make changes, within the general scope of the Purchase Order, in any one or more of the following:
(a) applicable drawings, designs or specifications;
(b) method of shipment or packing; and/or
(c) time or place of delivery.

If any such change causes an increase or decrease in the cost of, or the time required for performance of the Purchase Order, an equitable adjustment shall be made in the order price or delivery schedule, or both, and the Purchase Order shall be modified in writing accordingly. Any claim by Seller for adjustment under the Purchase Order must be asserted within 20 days from the date of receipt by Seller of the notification of change; provided, however, that such period may be extended upon approval of Buyer. However, nothing in this clause shall excuse Seller from proceeding with the Purchase Order as changed or modified.

12. TERMINATION OF WORK FOR DEFAULT

If Seller defaults or persistently fails or neglects to carry out the Work in accordance with the Purchase Order or fails to perform any provisions of the Purchase Order, Buyer may, after seven days written notice to Seller and without liability to Seller and without prejudice to any other remedy Buyer may have, make good such deficiencies and may deduct the cost thereof from the payment then or thereafter due Seller or, at Buyer's option, may terminate the Purchase Order and may finish the Work by whatever method Buyer may deem expedient. If the unpaid balance of the price, if any, exceeds the expense of finishing the Work, such excess shall be paid to Seller, but if such expense exceeds such unpaid balance, Seller shall pay the difference to Buyer.

13. INSOLVENCY, LOSS OF PROFITS, DAMAGES

The insolvency or adjudication of bankruptcy of, or the filing of a voluntary petition in bankruptcy on behalf of, or the making of an assignment for the benefit of creditors by, either party, shall be a material breach of the Purchase Order. In no event shall Seller be entitled to anticipatory profits, or to incidental, indirect, special, Consequential, or other economic damages.

14. INCUMBRANCES

All materials, merchandise and Work supplied must be free from liability or infringement of royalties, Intellectual Property Rights (defined as and including patent, trademark, trade dress, trade name, copyright or other statutory or common law rights), security interests, liens (including mechanic's liens) or other incumbrances, and Seller agrees to defend, indemnify and hold Buyer harmless against all claims, demands, costs and actions for actual or alleged infringements of Intellectual Property Rights in the use, sale or resale of said materials, merchandise or Work. Seller will provide and obtain from all of its subcontractors waivers and releases of all liens which may be imposed by them against the products or services provided under the Purchase Order or the premises of Buyer or the improvements thereon. If any security interest or lien remains unsatisfied after all payments are made, Seller shall refund to Buyer all monies the latter may be compelled to pay in discharging such lien, including all costs and reasonable attorneys' fees, and Seller shall fully and completely indemnify and hold Buyer harmless from all claims of Seller's subcontractors, employees, laborers, suppliers, and materialmen for payment for Work or services performed or materials or supplies furnished.

15. BUYER'S PROTECTION IN CONNECTION WITH WORK DONE AT ITS FACILITY

In the performance of work at Buyer's facility, Seller, its employees, agents, and subcontractors will exercise due care to prevent personal injury or property damage during the course of said work. Seller will indemnify and hold harmless Buyer from any and all loss, liability and damages arising out of any act or omission of Seller, its employees, agents, and subcontractors. Seller will keep in force and effect comprehensive insurance coverage as set forth in Section 19.

TERMS AND CONDITIONS (continued)

16. COMPLIANCE WITH LAWS

Seller warrants that no law, regulation, rule or ordinance of the United States, a State or any other governmental agency ("Laws") has been violated in the manufacture or sale of the items or in the performance of services covered by the Purchase Order, and will defend and hold Buyer harmless from loss, cost or damage as a result of any such actual or alleged violation. Goods consisting of tools, machinery, equipment and accessories, or parts thereof, will comply with all applicable federal, state or local governmental laws, regulations or orders (including occupational safety and health laws, regulations and orders) as to design, construction and performance at Buyer's place of use, and Seller will notify Buyer if goods ordered do not so comply; furthermore, it is agreed that the purchase price includes, and Seller agrees to furnish, all accessories, parts and appliances required by any such law, regulation or order for use or operation at Buyer's place of use. Seller agrees to give all notices and fully comply with all applicable federal, state and/or local safety rules, regulations and laws, including but not limited to the Occupational Safety and Health Act ("OSHA") and any project or plant safety rules established by Buyer. Seller agrees to furnish safety data sheets for all goods, materials and/or equipment furnished by Seller as required by OSHA. Seller specifically agrees to defend, indemnify and hold harmless Buyer from any and all liability and damages, fines, costs, and attorney fees incurred by Buyer on account of Seller's failure to fully comply with any such laws, governmental regulations or safety rules applicable to the Work. This shall be in addition to other indemnities contained in the Purchase Order and/or these terms and conditions. Though Buyer has no obligation to monitor the Work, Buyer may immediately, temporarily stop the Work if, solely in Buyer's opinion, Seller is performing its Work in an unsafe manner or in a manner likely to result in personal injury, death or property damage, or if Seller fails to maintain and enforce safety precautions and programs in connection with the Work, including, but without limitation, a drug and alcohol policy which provides for reasonable suspicion and post-accident alcohol/drug testing. In no event shall Buyer be liable to Seller for any direct, indirect, incidental, consequential or delayed damages resulting from Buyer's exercise of its right to stop the Work for safety reasons. Seller hereby releases Buyer from any such claim and covenants not to assert any such claim against Buyer. Seller further agrees to require all of its subcontractors and suppliers to comply with the provisions of this Section 16.

17. IMMIGRATION COMPLIANCE CERTIFICATION

Seller hereby certifies that all of its employees, contractors, subcontractors and vendors are duly authorized to work in the United States, and that Seller complies with requirements of the Immigration Reform and Control Act (IRCA) and other federal and state laws governing identity and employment authorization verification. Seller shall indemnify Buyer from and against all claims, damages, losses and expenses, including but not limited to attorneys' fees, arising out of or resulting from Seller's failure to comply with federal immigration laws or applicable state laws.

18. INDEMNITY

Seller shall defend, indemnify and hold harmless Buyer and its agents and employees from and against all claims, damages, losses and expenses, including but not limited to attorneys' fees, arising out of or resulting from the breach of any provisions of the Purchase Order, failure to comply with Laws, the performance of the Work or the presence of Seller, its agents, employees, subcontractors or representatives on Buyer's property, provided that any such claim, damage, loss or expense is caused in whole or in part by any negligent act or omission of Seller, any subcontractor, anyone directly or indirectly employed by any of them or anyone for whose acts any of them may be liable, regardless of whether or not it is caused in part by a party indemnified hereunder. Such obligation shall not be construed to negate, abridge, or otherwise reduce any other right or obligation of indemnity which would otherwise exist as to the parties indemnified by this paragraph. In any and all claims against Buyer or any of its agents or employees by any employee of Seller, any subcontractor, anyone directly or indirectly employed by any of them or anyone for whose acts any of them may be liable, the indemnification obligation under this section shall not be limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Seller or any subcontractor under Workers' or Workmen's Compensation Acts, disability benefits acts or other employee benefit acts.

19. INSURANCE

For all Work and as the Purchase Order requires, Liability insurance shall be purchased and maintained by Seller for protection from claims under Workers' or Workmen's Compensation Acts ("Work Comp Acts") and other employee benefit acts, claims for damages because of bodily injury, including death, and from claims for damages to real or personal property which may arise out of or result from Seller's operations under the Purchase Order, whether such operations be by Seller or by any subcontractor or anyone directly or indirectly employed by any of them. Seller may not elect to opt out of any state's Work Comp Act, but shall maintain such Work Comp Acts insurance in amounts and coverages as required by each state in which Work pursuant to the Purchase Order is performed. Seller shall also maintain: employer's liability coverage with minimum limits of \$1,000,000 bodily injury by accident; \$1,000,000 bodily injury by disease each employee; \$1,000,000 bodily injury by disease policy limit; commercial general liability insurance (including contractual and contractor's protective liability coverage) with a \$1,000,000 limit per occurrence for personal injury, property damage and advertising injury/\$2,000,000 general aggregate and products completed aggregate; automobile liability insurance with a combined single limit of at least \$1,000,000 per accident; and a follow form umbrella liability with a limit of at least \$2,000,000 per occurrence/\$2,000,000 aggregate, excess of general liability, automobile liability and employer's liability. Buyer shall be named as an additional insured on the commercial general liability, automobile liability and umbrella liability policies. The commercial general liability, automobile liability, employer's liability and Work Comp Acts policies shall contain a waiver of subrogation in favor of Buyer. Seller shall provide Buyer at least 30 days prior written notice of cancellation by the insurer for non-payment of premium or other cancellation of the policies. Seller shall provide satisfactory proof of such insurance to Buyer upon receipt of the Purchase Order. Buyer will maintain such proof on file in order to facilitate future Purchase Orders. Seller shall provide additional proof, including proof of renewal. In addition to above requirements, Sellers providing waste clean-up or waste hauling shall also maintain contractors pollution liability coverage with a \$1,000,000 limit per occurrence including coverage for clean-up and remediation, bodily injury, transportation, and non-owned site disposal. Professional Sellers shall maintain professional liability coverage with a minimum limit of \$1,000,000. Hazardous material truck haulers shall maintain \$5,000,000 automobile liability insurance with a combined single limit of \$5,000,000 and a MCS-90 endorsement must be provided showing a limit of \$5,000,000. The hazardous material automobile liability required limit can be met by a follow form umbrella policy. All truck haulers shall maintain cargo coverage with a \$100,000 limit.

20. SUBCONTRACTORS; LABORERS AND SUPPLIERS

Seller shall not employ any subcontractor to whom Buyer may have a reasonable objection. Unless expressly agreed otherwise in writing, Seller shall provide and pay for all services, labor, overtime labor, standby labor, methods, materials, equipment, transportation and all other facilities, services and items of every kind necessary to complete the intent of the Purchase Order for the specified sum within the time contemplated. Nothing in this Purchase Order is intended, or shall be construed, to create a partnership, joint venture, or employer-employee relationship between the parties. Unless expressly agreed otherwise in writing, Seller has no authority to act on behalf of or to enter into any contract, incur any liability, or make any representation on behalf of Buyer and will secure all licenses and permits, and supply all tools and equipment, necessary to perform the Work. Seller will not be entitled to any of the benefits that Buyer may make available to its employees including, but not limited to, group health or life insurance, stock options, profit sharing, or retirement benefits. Seller is solely responsible for all taxes and withholdings, severance and redundancy pay, benefits (including, without limitation, vacation, sick leave, holidays, pension or profit sharing contributions, etc.), and other similar obligations, whether statutory or otherwise, with respect to payments made by Seller relating to the performance of all its services and its receipt of fees under this Purchase Order. In addition to any other indemnity obligations, Seller will defend, indemnify, and hold Buyer harmless from any and all claims made by any person or any entity on account of an alleged failure to satisfy any obligation specified in this Section. At Buyer's direction, Seller will remove any Seller employees, personnel or subcontractor from performance of the Work.

21. GRATUITIES

Seller warrants that it has not offered or given and will not offer or give to any employee, agent or representative of Buyer any gratuity with a view toward securing any business from Buyer or influencing such person with respect to the terms, conditions or performance of any contract with or order from Buyer. Any breach of this warranty shall be a material breach of each and every contract between Buyer and Seller.

22. NONDISCLOSURE OF CONFIDENTIAL MATTER

The Work and materials purchased hereunder with Buyer's specifications or drawings shall not be quoted for sale to others without Buyer's written authorization. Such specifications, drawings, samples or other data furnished by Buyer shall be treated as confidential information by Seller, shall remain Buyer's property and shall be returned to it on request.

23. ASSIGNMENT

No right or obligation under this Purchase Order (including the right to receive moneys due and to become due hereunder) shall be assigned by Seller without the prior written consent of Buyer, and any purported assignment without such consent shall be void.

24. BUYER-FURNISHED PROPERTY

All tools or other materials furnished by Buyer for use in the performance of the Purchase Order shall remain the property of Buyer, shall be used by Seller in the performance of the Purchase Order only, in accordance with the requirements of the Purchase Order relating to such use, and shall be returned to Buyer when requested upon the completion or termination of the Purchase Order to the extent not previously delivered to Buyer. Seller will adequately identify Buyer's property and safely store it separate and apart from Seller's property. Seller will not substitute any property for Buyer's property and will use such property only in fulfilling its obligations under the Purchase Order. While in Seller's care, custody or control, Buyer's property will be held at Seller's risk, kept insured by Seller at Seller's expense, and subject to removal at Buyer's request. Furthermore, Buyer shall not be liable for, nor have any obligation to insure against, any loss or damage to Seller's (including its parents, subsidiaries, agents, employees, representatives or subcontractors) tools, machinery, equipment and other personal property. Seller hereby waives its rights and that of its insurers to subrogation against Buyer for damage or destruction to such property, and shall require all subcontractors to waive subrogation rights as well.

25. NOTICE OF LABOR DISPUTES

Whenever an actual or potential labor dispute is delaying or threatens to delay the timely performance of the Purchase Order, Seller will immediately notify Buyer of such dispute and furnish all relevant details. Seller will include a provision identical to the above in each subcontract hereunder and immediately upon receipt of any such notice pass it on to Buyer.

26. PATENT LICENSE

Seller, as part consideration for the Purchase Order and without further cost to Buyer, hereby grants and agrees to grant to Buyer and, to the extent requested by Buyer, an irrevocable, perpetual, transferable, worldwide, non-exclusive, royalty-free right and license to use, sell, manufacture and cause to be manufactured, products embodying any and all inventions and discoveries made, conceived or actually reduced to practice in connection with the performance of the Purchase Order.

27. SPECIAL TOOLING

If all of the costs of special tooling used in the performance of the Purchase Order have been charged to the Purchase Order, or to the Purchase Order and other orders placed by Buyer, title to such special tooling shall vest in Buyer at the option of Buyer. Such tooling is to be used only in the performance of such Purchase Orders unless otherwise approved by Buyer. Seller agrees that it will follow normal industrial practice in the identification and maintenance of property control records on all such tooling, and will make such records available for inspection by Buyer at all reasonable times. After the termination or completion of such order(s) and upon the request of Buyer, Seller shall furnish a list of such tooling and shall make such tooling available for disposition by Buyer.

28. HAZARDOUS MATERIALS

Seller warrants and represents that materials furnished pursuant to the Purchase Order do not consist of materials listed in 40 C.F.R. 372.65 or its equivalent regulation. In the event Buyer determines, in its sole discretion, that materials furnished or to be furnished pursuant to the Purchase Order are not suitable for Buyer's intended purpose or that the materials, when used for Buyer's intended purpose, potentially create a health or environmental hazard or risk, Buyer shall have the right to immediately terminate all future shipments of the materials. In the event of termination by Buyer pursuant to this paragraph, Buyer shall be required to pay only for materials shipped to Buyer on or before the date Buyer's notice of termination is deposited in the U.S. mail, addressed to Seller at the address contained on the Purchase Order, postage prepaid, certified or registered mail. Seller shall not cause or allow the presence, storage, introduction or spillage on, in or about Buyer's premises of hazardous substances (as that term is defined in the Comprehensive Environmental Response, Compensation and Liability Act, 42 U.S.C.A. §9601), petroleum products or any other contaminants or other materials or substances posing a threat to the environment, including polychlorinated biphenyls and asbestos.

29. ACCESS, AUDIT AND CONTINUING OBLIGATIONS

In order to assess Seller's quality and compliance with the Purchase Order, Seller will permit Buyer reasonable access to (i) all locations where Work is performed in connection with the materials or services provided for in the Purchase Order, and (ii) Seller's books and records relating to the Purchase Order. Seller must maintain its books and records pertaining to the Purchase Order for at least three (3) years following the date of Buyer's last acceptance of the Work or materials under the Purchase Order. Seller's obligations, representations and warranties herein shall survive the acceptance of the Work and delivery of materials to Buyer and any resale of materials by Buyer, or by Buyer's subsidiaries and affiliates. Should any of the provisions of the Purchase Order be declared by any court of competent jurisdiction to be invalid, such decision shall not affect the validity of any of the remaining provisions.

30. GOVERNING LAW AND ARBITRATION

The Purchase Order shall be governed by the law of the State in which the Work is performed without regard to its conflicts of laws provisions. Every claim or controversy between Seller and Buyer and/or its employees and agents, arising from or relating to the Purchase Order, or the breach, termination or validity thereof, shall be resolved by final and binding arbitration in Kansas City, Kansas in accordance with the then-current Commercial Arbitration Rules (the "Rules") of the American Arbitration Association (the "AAA"). To arbitrate an action against Buyer, Seller must initiate the arbitration in accordance with the Rules of the AAA and provide written notice to Buyer. The arbitrator shall have the authority to render the same relief as a court of competent jurisdiction when resolving disputes regarding the Purchase Order. The arbitrator shall have exclusive authority to resolve any dispute relating to the interpretation, applicability, enforceability or formation of the Purchase Order, including, but not limited to, any claim that all or any part of the Purchase Order is void or voidable. When allowed by the rules of arbitration, the prevailing party shall be entitled to recover its costs and reasonable attorney's fees.

PURCHASE ORDER CONFIRMATION

**LOPAREX
4194 PAYSPHERE CIRCLE
CHICAGO IL 60674**

Please email the buying personnel listed below confirmation of receipt of Purchase Order number:
4500862422

Buyer Name: Kelley Leonard
EMail Address: Kelley_Leonard@tamko.com
Fax Number: 800-841-1925